

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #13	CCRB Case #: 201706750	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 07/20/2017 1:24 AM	Location of Incident: 154 Orchard Street	18 Mo. SOL 1/20/2019	Precinct: 07
Date/Time CV Reported Thu, 08/17/2017 11:28 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/17/2017 11:28 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Perez	21352	951043	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Corey Behan	04639	956425	007 PCT
2. POF Toni Burke	17970	952512	007 PCT
3. POM Jose Aracena	18880	951470	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Perez	Discourtesy: PO Luis Perez spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Luis Perez	Abuse: PO Luis Perez threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM Luis Perez	Discourtesy: PO Luis Perez spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

On August 17, 2017, § 87(2)(b) filed this complaint with the CCRB by phone.

On July 20, 2017, at approximately 1:20 a.m., PO Corey Behan of the 7th Precinct arrested § 87(2)(b) in front of 154 Orchard Street in Manhattan for public consumption of marijuana. During the arrest, PO Luis Perez of the 7th Precinct allegedly told § 87(2)(b) s friend, “Shut the fuck up and walk away if you don’t want me to fucking arrest you” (**Allegation A: Discourtesy, unsubstantiated; Allegation B: Abuse of Authority, unsubstantiated**). PO Perez then allegedly told § 87(2)(b) “Thanks to your fucking friend, you’re gonna get arrested” (**Allegation C: Discourtesy, unsubstantiated**). § 87(2)(g), § 87(4-b)

§ 87(2)(b)

§ 87(2)(b)

Findings and Recommendations

Allegation A: Discourtesy – PO Luis Perez spoke discourteously to § 87(2)(b)

Allegation B: Abuse of Authority – PO Luis Perez threatened to arrest § 87(2)(b)

Allegation C: Discourtesy – PO Luis Perez spoke discourteously to § 87(2)(b)

It is undisputed that PO Luis Perez and PO Jose Aracena approached § 87(2)(b) and § 87(2)(b) in front of 154 Orchard Street in Manhattan after observing § 87(2)(b) lighting a marijuana pipe. PO Corey Behan and PO Toni Burke had been driving behind PO Perez and PO Aracena prior to this incident, and they exited their vehicle and also approached § 87(2)(b) and § 87(2)(b). PO Behan subsequently placed § 87(2)(b) under arrest for § 87(2)(b) and the officers recovered a marijuana pipe and a bag of marijuana from her during the arrest.

§ 87(2)(b) alleged that PO Perez was speaking aggressively towards her, and § 87(2)(b) asked the officer why she was speaking to § 87(2)(b) in that manner. PO Perez responded, “Shut the fuck up and walk away if you don’t want me to fucking arrest you.” § 87(2)(b) asked what she would be arrested for, and PO Perez stated, “Walk the fuck away.” PO Perez then told § 87(2)(b) “You know what? Thanks to your fucking friend, you’re going to get arrested” (01 Board Review) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b) stated that she told PO Perez that § 87(2)(b) had not done anything wrong, and PO Perez responded, “Shut the fuck up and walk away.” She alleged that he stated if she did not do so than she would be arrested. § 87(2)(b) denied hearing PO Perez use any profanity

during the incident except for telling her to “Shut the fuck up and walk away” (03 Board Review).

§ 87(2)(b) and § 87(2)(b) both stated that the officer who made these alleged statements was the same officer initially approached § 87(2)(b) and asked what she had been smoking. § 87(2)(b) replied that it was a pipe. This officer asked to see the pipe, and § 87(2)(b) removed it from her bag and handed it to the officer.

§ 87(2)(b) described this officer as a white or Hispanic male with a muscular build, in his late 30s. She could not estimate his height, but stated he was tall. § 87(2)(b) described the subject officer’s partner as a 5’5” tall Hispanic male with an average build in his early 30s. § 87(2)(b) described the subject officer as a 5’7” tall, stocky Hispanic male in his 20s or 30s. She could not describe this officer’s partner in any way.

PO Perez (04 Board Review), PO Aracena (05 Board Review) and PO Behan (06 Board Review) all stated that § 87(2)(b) was very upset and yelling at the officers during the incident, but none of them recalled any specific or general statements the officers made towards § 87(2)(b). PO Perez and PO Aracena both denied all of the allegations in this case, and PO Behan did not recall any officer making the alleged statements, using any profanity, or threatening to arrest § 87(2)(b). PO Burke did not recall the incident (07 Board Review). None of the officers recalled which officer recovered the marijuana pipe and marijuana from § 87(2)(b) § 87(2)(a) 160.50

§ 87(2)(b) The property voucher for the marijuana pipe and bag of marijuana also list PO Perez as the officer who found this contraband (09 Board Review).

PO Perez is a § 87(2)(b)-old Hispanic male. PO Aracena is a § 87(2)(b)-old Hispanic male.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **unsubstantiated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint for both § 87(2)(b) and § 87(2)(b)
- PO Perez has been a member of service for six years. There are no substantiated allegations on his record, § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation.
- A notice of claim request was submitted to the NYC Comptroller's Office on December 4, 2017. It will be added to the case file upon its receipt (11 Board Review).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date